

Schedule 7

[s. 40(1BE), (1BF) & (1BG)]
(Amended E.R. 1 of 2013)

Penalty Notice

1. A penalty notice under section 40(1BE) must be made in writing stating—
 - (a) that the person served with the penalty notice is required to pay a fixed penalty of \$1,500 within 21 days after the date of the penalty notice;
 - (b) if the person wishes to dispute liability for the offence under section 40(1BD), that the person must notify the Building Authority in writing within 21 days after the date of the penalty notice;
 - (c) that the person is required to comply with the notice served under section 30C(3) or (4), and if the person's failure to comply with the notice continues, the Building Authority may—
 - (i) serve on the person a further penalty notice after the expiry of the penalty notice that is being served; or
 - (ii) proceed to take court proceedings for the person's failure to comply with the notice served under section 30C(3) or (4), and the person would be liable to the fine and imprisonment mentioned in section 40(1BD); and
 - (d) any other related matters, including payment instructions for payment of the fixed penalty.

2. Section 35 applies to the service of a penalty notice under section 40(1BE).
3. If any person on whom a penalty notice has been served has failed to pay the fixed penalty of \$1,500, and has not notified the Building Authority that the person wishes to dispute liability, within 21 days after the date of the penalty notice, a magistrate may, on an application being made in the manner mentioned in section 4 of this Schedule, order the person to pay the fixed penalty of \$1,500, together with a sum of \$300 by way of costs, within 21 days after the date of service of notice of the order.
4. An application under section 3 of this Schedule—
 - (a) may be made in the absence of the person on whom the penalty notice has been served; and
 - (b) must be made in the name of the Secretary for Justice, who may appoint any person or class of persons to make the application.
5. Despite the Magistrate Ordinance (Cap. 227), in an application under section 3 of this Schedule, a magistrate may make an order under that section on production by the applicant to the magistrate of—
 - (a) a copy of the penalty notice served under section 40(1BE); and
 - (b) a certificate of service under section 35(2).
6. In an application under section 3 of this Schedule, a certificate stating—
 - (a) that payment of the fixed penalty of \$1,500 had not been made before the date specified in the certificate; and

- (b) that the person specified in it had not, before the date specified in the certificate, notified the Building Authority that the person wished to dispute liability for the offence under section 40(1BD),

and purporting to be signed by or for the Building Authority is to be admitted in evidence without further proof on its production to the magistrate and, unless there is evidence to the contrary, it is presumed that the certificate is so signed and the certificate is evidence of the facts stated in it.

7. If an order is made under section 3 of this Schedule—
 - (a) the magistrate must cause notice of the order to be served on the person to whom it relates; and
 - (b) the sending of the notice to the person by post at the person's address mentioned in the penalty notice constitutes good service.
8. If any person against whom an order under section 3 of this Schedule has been made fails to pay the fixed penalty and costs, the person is taken, for the purposes of section 68 of the Magistrates Ordinance (Cap. 227), to have failed to pay the sum adjudged to be paid by a conviction and is liable to be imprisoned under that section.
9. If there is evidence to show that a penalty notice served under section 40(1BE) has not come to the notice of the person to whom it relates before the date of the order made under section 3 of this Schedule, the magistrate may, on an application of which reasonable notice has been given to the Building Authority, rescind the order and—
 - (a) if the person wishes to dispute liability for the offence under section 40(1BD), give leave to that effect; or

- (b) if that person does not wish to dispute liability, order that person to pay the fixed penalty of \$1,500 within 21 days after the date of the order.
10. An application for rescission of an order under section 9 of this Schedule may be made in person or by counsel or solicitor on behalf of the applicant and the magistrate, for the purpose of securing the attendance of witnesses and generally for conducting the proceedings, has all the powers of a magistrate hearing a complaint under the Magistrates Ordinance (Cap. 227).
11. An application for rescission of an order under section 9 of this Schedule must be made within 21 days after the date of service of notice of the order made under section 3 of this Schedule, but the magistrate may extend the period if he or she considers it appropriate to do so in the circumstances.
12. If a magistrate gives leave under section 9(a) of this Schedule, proceedings may be taken, despite section 26 of the Magistrates Ordinance (Cap. 227), within 6 months after the date on which the magistrate gives the leave.
13. A magistrate may for good cause, on an application by the Building Authority at any time, rescind any order for the payment of a fixed penalty and costs and any other order made in the same proceedings.
14. If any person against whom an order under section 9(b) of this Schedule has been made fails to pay the fixed penalty, the person is taken, for the purposes of section 68 of the Magistrates Ordinance (Cap. 227), to have failed to pay the sum adjudged to be paid by a conviction and is liable to be imprisoned under that section.

15. If any person on whom a penalty notice under section 40(1BE) has been served notifies the Building Authority that the person wishes to dispute liability or the person is given leave under section 9(a) of this Schedule, proceedings may be taken against that person, and a summons issued in those proceedings may be served on that person in accordance with section 8 of the Magistrates Ordinance (Cap. 227).
16. In proceedings under section 15 of this Schedule, if the court determines that the person is guilty of the offence of failing to comply with the notice served on the person under section 30C(3) or (4) without reasonable excuse, the person is liable to the fine and imprisonment under section 40(1BD).
17. After proceedings have been instituted but not less than 2 days (excluding any Saturday and public holiday) before the day specified in the summons for the person's appearance, the person may pay the fixed penalty of \$1,500 and a sum of \$500 by way of costs with the production of the summons at any magistracy to terminate the proceedings. (*Amended 18 of 2016 s. 14*)
18. If a person's failure to comply with the notice served on the person under section 30C(3) or (4) continues without reasonable excuse despite a penalty notice served under section 40(1BE), the Building Authority may—
 - (a) serve on the person a further penalty notice after the expiry of the penalty notice that is being served; or
 - (b) proceed to take court proceedings against the person under section 40(1BD).
19. The decision of the Building Authority to serve a penalty notice under section 18 of this Schedule is not subject to appeal under section 44.

Buildings Ordinance

Schedule 7

S7-12

Cap. 123

(Schedule 7 added 16 of 2011 s. 37)

(Format changes—E.R. 2 of 2012)
